

25STCP04237 25STCP04237

County: los-angeles

Division: Civil Law and Motion

Department: 833

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Case Number: 25STCP04237 Hearing Date: August 19, 2026 Dept: 833

In the Matter Of: Case No. 25STCP04237

Hearing:

August 19, 2026

Location:

Stanley Mosk Courthouse

Department:

833 Lotan Evenhaim Judge: Joseph Lipner

Order Denying Petition

for Writ of Mandate

INTRODUCTION

Petitioner Lotan Evenhaim ("Petitioner") moves for a writ of mandate to set aside the suspension of his driving privilege for violating Vehicle Code sections 23152 and 23153.

The Court DENIES the petition for writ of mandate.

BACKGROUND

A. Statement of Facts

On

August 29, 2025, Petitioner was detained by Officer Michael Miller of the Paso Robles Police Department, on the grounds that Petitioner's vehicle had tinted windows and failed to display a license plate on the front bumper of the vehicle. (AR 11.)[1] Upon making contact with the driver, Officer Miller observed that Petitioner had red and/or watery eyes and an odor of alcohol, and an unsteady gait. (AR 11.) Petitioner performed unsatisfactorily on various field sobriety tests. (AR 4.) Petitioner also admitted to consuming alcohol prior to driving and Officer Miller observed Petitioner's driving before stopping him. (AR 4.) Petitioner declined to submit to a field alcohol screening test. (AR 15.) Based on his observations of Petitioner's driving, objective signs and symptoms of alcohol intoxication, and performance on field sobriety tests, Officer Miller determined that Petitioner was under the influence of alcohol and unfit to drive a motor vehicle and placed him under arrest. (AR 15-16.)

At the police department, Petitioner consented to a chemical breath test with a result of .10% Blood Alcohol Level ("BAC") at 11:27 pm and test with a result of .10% BAC at 11 :30 pm on August 29, 2025. (AR 16.) Officer Miller administered the breath tests using a Drager 7510, serial number ARFF-0035. (AR 16.)

On October 15, 2025, Hearing Officer Valenzuela called Petitioner's counsel to begin the hearing. (AR 23-24.) Petitioner was represented by his counsel, Mr. Matthew Cargal. (AR 24.) Hearing Officer Valenzuela identified the issues for the hearing, including whether the peace officer had reasonable cause to believe that the driver had been driving a motor vehicle in violation of Vehicle Code section 23152 or 23153, whether the driver was lawfully arrested, and whether the driver was driving a motor vehicle with a blood alcohol content of 0.08% or more by weight of alcohol. (AR 24-25.)

The hearing officer determined that Petitioner was lawfully detained based on Petitioner's vehicle having tinted windows and failing to display a license plate on the front bumper of the vehicle. (AR 3.) The hearing officer further found that Officer Miller had reasonable cause to conduct a DUI investigation based on Petitioner's objective signs and symptoms of intoxication. (AR 3.) The hearing officer held that Officer Miller had probable cause to lawfully arrest petitioner based on the totality of the circumstances, including his objective

signs and symptoms of intoxication, poor performance on field sobriety tests, and his admission that he consumed alcohol prior to driving. (AR 3-4.)

The hearing officer decided that the suspension of Petitioner's driving privileges would be imposed on October 25, 2025 and would remain in effect until February 24, 2026. (AR 3.)

This petition followed.

LEGAL STANDARD

A. General Standard on Writs of Mandate

Under Code of Civil Procedure section 1094.5, subd. (b), the pertinent issues are whether the respondent has proceeded without jurisdiction, whether there was a fair trial, and whether there was a prejudicial abuse of discretion. An abuse of discretion is established if the agency has not proceeded in the manner required by law, the decision is not supported by the findings, or the findings are not supported by the evidence. (Code Civ. Proc. § 1094.5(b).)

When a driver petitions for a writ of mandate following an order suspending his or her driver's license, the trial court is required to determine, based on its independent judgment, whether the weight of the evidence supports the administrative decision. (*Lake v. Reed* (1997) 16 Cal. 4th 448, 456.) Under the independent judgment test, "the trial court not only examines the administrative record for errors of law, but also exercises its independent judgment upon the evidence disclosed in a limited trial de novo." (*Bixby v. Pierno* (1971) 4 Cal. 3d 130, 143.) The court must draw its own reasonable inferences from the evidence and make its own credibility determinations. (*Morrison v. Housing Authority of the City of Los Angeles Board of Commissioners* (2003) 107 Cal. App. 4th 860, 868.) However, "in exercising its independent judgment, a trial court must afford a strong presumption of correctness concerning the administrative findings, and the party challenging the

administrative decision bears the burden of convincing the court that the administrative findings are contrary to the weight of the evidence.” (Fukuda v. City of Angels (1999) 20 Cal. 4th 805, 817; accord Hildebrand v. Department of Motor Vehicles (2007) 152 Cal.App.4th 1562, 1568 [administrative findings of the DMV “come before the superior court with a ‘strong presumption of correctness’”] and Manriquez v. Gourley (2003) 105 Cal.App.4th 1227, 1233 [same].)

“On questions of law arising in mandate proceedings, [the court] exercise[s] independent judgment.” (Christensen v. Lightbourne (2017) 15 Cal.App.5th 1239, 1251.) The interpretation of statute or regulation is a question of law. (See State Farm Mut. Auto. Ins. Co. v. Quackenbush (1999) 77 Cal.App.4th 65, 77.) “A challenge to the procedural fairness of the administrative hearing is reviewed de novo on appeal because the ultimate determination of procedural fairness amounts to a question of law.” (Nasha L.L.C. v. City of Los Angeles (2004) 125 Cal.App.4th 470, 482.)

B.
The Vehicle Code

Vehicle

Code § 13559 allows a reviewing court to overturn an order from the DMV only if it concludes that the DMV “exceeded its constitutional or statutory authority, made an erroneous interpretation of the law, acted in an arbitrary or capricious manner, or made a determination which is not supported by the evidence in the record.”

Under

the APS statutes, the DMV is required to suspend a motorist’s driving privilege when, by a preponderance of the evidence, the record shows that: (1) the arresting officer had reasonable cause to believe the person was driving in violation of section 23152 or 23153; (2) the person was placed under arrest; and (3) the person was driving with 0.08 percent or more, by weight, of alcohol in the blood. (Dyer v. Department of Motor Vehicles (2008) 163 Cal.App.4th 161, 167.) The determination is based upon the officer’s report and any evidence accompanying the report. (Ibid.)

DISCUSSION

A.

The prayer for relief indicates this Court cannot grant the relief requested

In

his petition, Petitioner requests that the court issue a writ of mandate directing the Department of Motor Vehicles ("DMV") to vacate and set aside its order suspending Petitioner's privilege to operate a motor vehicle and to make a new and different order reinstating Petitioner's privilege to operate a motor vehicle.

The

administrative record indicates that Petitioner's suspension against driving privilege was imposed on October 25, 2025 and would be effective until February 24, 2026. (AR 3.) Petitioner does not point to any place in the administrative record that indicates that Petitioner is currently unable to operate a motor vehicle.

The

Court nevertheless proceeds to analyze whether the DMV was right to suspend the privilege to operate a motor vehicle in the first place.

B.

Petitioner's argument that there was no specific and articulable facts to pull him over is unpersuasive

Petitioner's

first argument is that Officer Miller lacked specific and articulable facts to initiate a traffic stop. According to Petitioner, if Officer Miller lacked facts to initiate a traffic stop, there would be no reason that Officer Miller would have ever seen Petitioner looking and acting intoxicated. (Opening Brief, 6:22-28.)

Exercising

its independent judgment, The Court finds that the evidence does not support Petitioner's argument. On August 29, 2025, Officer Miller identified a car that did not have a front license plate affixed to the front bumper, which violated California Vehicle Code 5200. (AR 15.) The vehicle also had tinted windows in violation of California Vehicle Code Section 26708. (AR 11.) This was enough to

initiate a traffic enforcement stop. (AR 15.)

Petitioner

argues that because both cars were traveling eastbound, it is unclear how the officer was able to see that Petitioner's vehicle did not have a front license plate. Additionally, Petitioner argues that the probable cause statement should have included information about which windows were tinted and to what degree were they tinted.

The

Court disagrees. Petitioner presents no law stating that a probable cause statement to stop a vehicle must include extensive allegations about which window was tinted and how much a window was tinted. Petitioner also presents no evidence in the record which would indicate that Officer Miller could not see the front of Petitioner's vehicle. Exercising its independent judgment, the Court finds that the direction of travel does not invalidate the observation or the stop.

C.

Petitioner's argument that the chemical breath tests were not reliable and sufficient to establish the Petitioner had a blood alcohol level over 0.08% is unpersuasive

Petitioner's

next argument is that there are errors on the breath test results, which means that the evidence is inconsistent and therefore not reliable.

Petitioner

argues that "the DUI report lists a test date of 7/10/25 at 05:28 which does not match the DS367 form indicating the incident occurred on 8/29/25 with tests conducted at 11 :27 pm and 11 :30 pm." (AR 4.)

In

an administrative hearing, "[a]ny relevant evidence shall be admitted if it is the sort of evidence on which responsible persons are accustomed to rely in the conduct of serious affairs, regardless of the existence of any common law or statutory rule which might make improper the admission of the evidence over objection in civil actions." (Government Code § 11513, subd. (c).) In DMV administrative hearings, the sworn statement, an accompanying arrest report, and any lab report reflecting chemical test results are routinely entered into

evidence. (See *Gananian v. Zolin* (1995) 33 Cal.App.4th 634, 638-643; *Petricka v. Department of Motor Vehicles* (2001) 89 Cal.App.4th 1341, 1348-1350 (*Petricka*).) Additionally, Evidence Code Section 1280 says that writing made by and within the scope of duty of a public employee that describes an act, condition, or event is not made inadmissible by the hearsay rule. (Evidence Code § 1280.)

Evidence

Code section 664 provides that “[i]t is presumed that [an] official duty has been regularly performed,” and this presumption has been widely applied to the Department’s administrative hearings. (*Petricka*, supra, 89 Cal.App.4th at p. 1348.) Once a prima facie case is made, the driver must show an officer engaged in improper performance, and must demonstrate a reasonable basis for an inference that the procedures were not properly followed. (*Ibid.*)

Exercising

its independent judgment, the Court starts with the presumption that Officer Miller properly conducted the chemical breath test. Petitioner did not subpoena Officer Miller to testify at the APS hearing, nor did he call any witnesses, although Hearing Officer Valenzuela gave him every opportunity to do so. Petitioner’s counsel failed to introduce any affirmative evidence that Officer Miller failed to observe his official standards.

Officer Miller’s paperwork is correctly dated on the detailed DS367 form. (AR 9-12.) The criminal report is similarly correctly dated and detailed. (AR 14-17.) The DUI form contains an incorrect date at the bottom but otherwise matches the information in the correctly-dated documents to which it was attached. (AR 17-18.) The chemical test results in the DUI form are referenced in Officer Miller’s correctly-dated arrest and booking narrative. (AR 16.)

Exercising

its independent judgment, the Court concludes that that Hearing Officer Valenzuela was right: a clerical error was responsible for the incorrect date and time being listed on the DUI report. (AR 5.) There is no evidence that the reliability of the chemical breath tests was impacted in any manner.

CONCLUSION

The Court DENIES the petition for writ of mandate.

Pursuant to Local Rule 3.231, subd. (n),
DMV shall prepare, serve, and ultimately file a proposed judgment.

IT IS SO ORDERED.

Dated: July 24,
2026

Joseph
Lipner

Superior
Court Judge

[1]

The

administrative record provided to the Court does not have stamped bates numbers which were apparently available to the parties. The Court cites to the PDF page number when referencing the record. For example, AR 11 is PDF page 11/53.